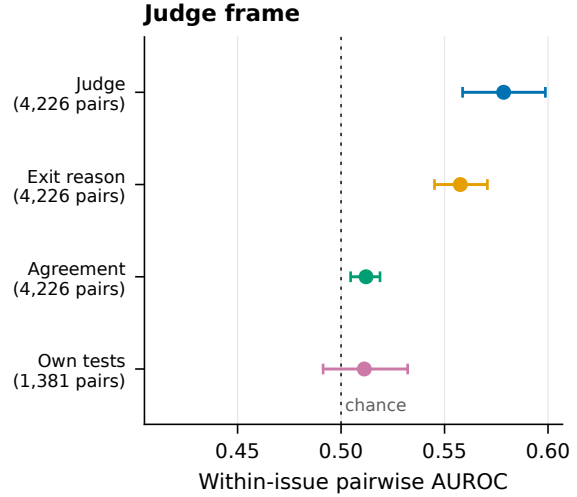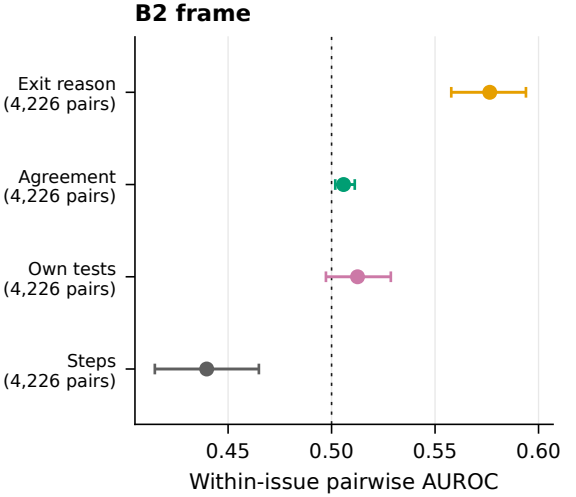Cheap signals barely separate attempts; the judge is modestly better